

A defendant may rely on a plaintiff's factually devoid discovery responses to meet its initial burden of proof and shift the burden to the plaintiff to set forth specific facts proving the existence of a triable issue of material fact. (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 107; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.)

Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Fraudulent Inducement in a Song-Beverly Consumer Warranty Act Action. The elements of a cause of action for fraudulent inducement are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the material fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the fact; and (5) damages sustained as a result of the concealment or suppression of the fact. (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606.)

FORD establishes that Plaintiffs have no proof of any element of this cause of action by reference to Plaintiffs' factually devoid discovery responses, which is sufficient to carry its burden of showing that Plaintiffs both lack and cannot reasonably obtain evidence. (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 587-588; Declaration of Trina M. Clayton in Support of Motion at ¶¶ 5-6, Exhibits C-E [discovery responses].) Plaintiffs write in response to special interrogatories asking them to state the facts supporting their claim for fraudulent inducement that FORD should refer to the complaint, to the Vehicle's repair history, and to Plaintiffs' document production. The complaint is not evidence. The Vehicle's repair history does not show how FORD knew of and concealed a defect, only (at most) that there was a defect. Plaintiffs' document production is the sales contract for the Vehicle and some repair history documents, which also do not show how FORD knew of and concealed a defect.

Plaintiffs do not raise a triable issue in response, having filed no opposition.

Conclusion. FORD's unopposed motion for summary adjudication is granted.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Plaintiff VIDA LARA's Motion to Compel Further Responses to Special Interrogatory No. 1 Propounded on Defendants WINNRESIDENTIAL L.P. and LLAM REALTY MANAGEMENT INC.

TENTATIVE RULING

THE PARTIES ARE TO APPEAR to address the status of any outstanding discovery.

THE RANCH OWNERS ASSOCIATION vs. SIMON WRIGHT
Case No. CU25-07415

Defendant's Motion to Set Aside Default

TENTATIVE RULING

Based upon the stipulation of the Parties, the motion to set aside default is GRANTED.

TINA VALENCIA vs. DEMPSEY CRISPIERI
Case No. CU26-01565

Plaintiff's Motion for Leave to File Second Amended Complaint

TENTATIVE RULING

Plaintiff TINA VALENCIA's motion for leave to file a second amended complaint against Defendant DEMPSEY CRISPIERI is denied without prejudice. There is no proof of service of notice of motion. Plaintiff provided only a statement that personal service was ineffective at an unstated address. The court further observes that the case file contains no proof that any previous iteration of the complaint was served on Defendant. As a matter of due process Defendant must be informed of court proceedings before action potentially affecting Defendant's rights may be taken.

Plaintiff is additionally advised to observe California Rules of Court, Rule 3.1324, subdivision (a), requiring identification of changes in an amended pleading by line, page, and paragraph, in the future.

WESTLAKE SERVICES, LLC dba WESTLAKE FINANCIAL SERVICES vs. CAMILLE WEISS
Case No. FCM178004

Plaintiff's Motion to Vacate Settlement

TENTATIVE RULING

The Parties are to appear.
